

SUPERIOR COURT OF THE STATE OF CALIFORNIA
FOR THE COUNTY OF SAN BERNARDINO

DAVID KNIGHT, ET AL.,
Plaintiffs,

v.

GENERAL MOTORS LLC,
Defendants.

Case No.: CIVSB2320708

**[TENTATIVE] ORDER
GRANTING IN PART AND
DENYING IN PART PLAINTIFF'S
MOTION FOR ATTORNEYS'
FEES, COSTS, AND EXPENSES**

I. INTRODUCTION

This is a lemon law case. On August 29, 2023, Plaintiffs David Knight and Jaime Knight (Plaintiffs) filed a Complaint asserting the following two causes of action against Defendant General Motors LLC (GM): (1) violation of Song-Beverly Act - breach of implied warranty of merchantability; and (2) violation of Song-Beverly Act - breach of express warranty. GM answered.

Plaintiffs allege that on November 18, 2021, they purchased a new 2020 Cadillac XT6 (Subject Vehicle), which was manufactured by GM. The Subject Vehicle was accompanied by

express and implied warranties. The Subject Vehicle suffered from several defects and nonconformities. Plaintiffs brought the Subject Vehicle to GM's authorized repair facilities on several occasions, but GM and its facilities were unable, and/or failed to, repair the Subject Vehicle. GM also failed to either promptly replace the Subject Vehicle or make restitution. (Compl. ¶¶ 5-14.)

On December 21, 2025, Plaintiffs accepted GM's 998 Offer, wherein GM agreed to pay Plaintiffs \$115,000.00, inclusive of a loan payoff and additional damages for GM's failure to comply with its obligations under the Song-Beverly Consumer Warranty Act, with reasonable attorney fees and costs to be determined by motion. (Barry Decl. ¶ 9, Exh. 1.)

On April 14, 2026, Plaintiffs filed a Memorandum of Costs in the amount of \$2,405.52.

Plaintiffs now move to recover their attorney fees, costs and expenses in the total amount of \$59,611.02 consisting of \$57,205.50 in attorneys' fees; and \$2,405.52 in costs and expenses. GM opposes. Plaintiffs replied. After issuing a tentative ruling and holding a hearing on the motion, the Court now issues its final ruling.¹

II. EXPLANATION OF THE COURT'S RULING

For this action, six attorneys recorded time:

- David N. Barry: \$695.00;
- Kristopher Storti: \$600.00;
- Otis R. Hayes III: \$550.00;
- Debora Rabieian: \$525.00;
- Brian Kim: \$450.00; and
- Jeramy Templin: \$350.00.

¹ The Court finds that the moving party has complied with its meet-and-confer obligation.

(Barry Decl. ¶¶ 13-14 and 16-20, Exh. 2.) GM does not attack the reasonableness of the rates charged; they appear reasonable considering the qualifications and experiences of each attorney under the circumstances.

A. Attorneys' Fees

GM disputes portions of Plaintiffs' counsel's billings and asserts that Plaintiffs' counsel's time entries reflect excessive, inefficient work. GM also asserts that the record demonstrates that Plaintiffs engaged in conduct aimed at unnecessarily increasing the workload in this case.

1. Plaintiffs' Agreed Upon Reductions

As an initial matter, because GM did not file a Motion to Tax Costs as anticipated, Plaintiffs withdraw 6.4 hours at Mr. Barry's hourly rate of \$695.00 for a total reduction of \$4,448.00 from the motion for attorneys' fees. As such, the Court reduces Plaintiffs' attorney fee request by \$4,448.00.

2. Pre-Engagement Work

GM argues that work done by Plaintiffs' counsel on June 5, 12 & 15, 2023, in the amount of 1.5 hours (\$675.00), should not be allowed because these entries were billed before Plaintiffs were clients and consisted of such things as prospective case review, email exchanges with mechanical consultant, case plan and direction, and services offered and going over representation agreement. GM argues that these entries mirror billing entries counsel has alleged in other cases, calling into question whether these amounts were actually billed to this case.

GM's argument lacks merit. Plaintiffs' counsel is legally required to properly review every case to determine the action's legitimacy before filing it and also has an ethical duty to properly represent each client. Therefore, the Court denies this reduction.

3. GM's Alleged Template Reduction Requests

GM argues that Plaintiffs' counsel's work concerning: (1) preparing discovery requests and deposition notices on April 25-26, and 29, 2024, and May 08, 2024 (2.4 hours for \$1,080.00); (2) preparing meet-and-confer correspondence on November 9 & 30, 2023; and December 28, 2023 (1.8 hours for \$810.00); (3) reviewing and responding to GM's discovery requests on January 11, 2024 (5.6 hours for \$2,520.00); (4) motions to compel GM's further responses to FROGs, RFPs and SROGs on February 5, 6 & 8, 2024; April 10, 11, 12, 15-17 & 22-24, 2024 (23 hours for \$10,250.00); (5) preparing the fee motion on March 5, 2026; April 14, 2026; July 27 & 28, 2026 [anticipated] (14.2 hours for \$7,595.00); (6) reviewing GM's discovery responses and document production on November 6, 9, 28 & 29, 2023; December 27, 2023; January 9, 2024; July 24, 2024 (9.5 hours for \$4,275.00); and (7) reviewing GM's motions in limine on November 12, 2025 (0.8 hours for \$556.00) are all billings related to template work and should be discounted for the template work.

While the Court acknowledges that law firms use templates, counsel are still required to adapt the template to the case-specific details and purposes and otherwise prepare and finalize it like any other pleading. These billings appear to be reasonable. These requested reductions are denied.

4. Clerical & Administrative Tasks Billed at Attorney Rates Throughout Litigation

Next GM argues that 4.3 hours for \$2,274.50 is for purely administrative or case management tasks for reviewing and drafting routine court notices/filings such as notice of case management conference; notice of case assignment; notice of trial setting conference; notice of posting jury fees; case management statement, reviewing/responding to non-substantive emails,

and performing general file review all should be absorbed as overhead and not charged to the adversary, especially at lawyer rates.

The Court disagrees with GM on this issue because, even though some of these things seem purely administrative or case management tasks, there are legitimate reasons for an attorney to review and draft these documents, such as possible disqualification or challenging of a judge assigned to the matter, and providing the Court with accurate information concerning tasks and work that needs to be performed and completed prior to the case being set for or commencing trial. Further, GM does not point to specific time entries and only asserts a general reduction for these tasks, which is an insufficient challenge for the Court to properly address the requested reduction. Therefore, the Court denies this requested reduction.

5. Anticipatory Time for OSC Re: Dismissal

Here, Ms. Rabieian billed 3.0 hours for \$1,575.00 in anticipatory time for review of file in preparation for, travel to/from and attendance at an OSC re: Dismissal hearing. (Barry Decl. Ex. 2, p. 33.) This anticipatory time is purely speculative, includes non-recoverable and non-specified travel time, and was entirely avoidable had Plaintiffs' counsel not delayed nearly six months after settlement to file this motion. Further, when the Court hears this motion, the Court can advance that hearing and dismiss this action. Therefore, the Court GRANTS GM's request for reduction in the amount of \$1,575.00.

Next GM argues that Plaintiffs' counsel's billings for preparing trial documents on June 25-26, 2025; July 2, 15 and 16, 2025 (10.6 hours for \$5,565.00) should be reduced by 9.6 hours for a total reduction of \$5,040.00. Here, Plaintiffs' counsel prepared trial documents consisting of (1) a joint statement of the case; (2) joint exhibit list; (3) joint witness list; (4) trial brief; (5) joint jury instructions; (6) full text jury instructions; (7) proposed verdict form; (8) special jury

instructions; and (9) proposed jury instructions. GM argues that these documents are not drafted from scratch and the time billed is excessive.

Once again, GM's arguments fail because each document has to be properly reviewed and conformed to the specific case facts. The Court finds nothing excessive about these charges, which were undertaken just as trial was about to start.

6. Communications with Plaintiffs Throughout the Proceedings

Next GM argues that Plaintiffs' counsel's communication with their client was excessive and not fully necessary for this action. First, GM's opinion is not evidence of excessive billings. Second, Plaintiffs' counsel has an ethical duty to communicate with their client and update their client throughout the pendency of the litigation and 6.6 hours of communication with one's clients on a litigation that lasted over two years and was preparing for trial to commence is not unreasonable. Therefore, the Court denies the reduction.

7. Travel Time

Reasonable travel time by the attorney during litigation may be compensable at full rates if that is the practice in the community. (Civ. Code, § 1794, subd. (d); *Stratton v. Beck* (2017) 9 Cal.App.5th 483, 496; *Roe v. Halbig* (2018) 29 Cal.App.5th 286, 313.)

However, in this department at this time, counsel does not need to make a mandatory physical appearance at the court hearings, and could have used CourtCall or Zoom to make the appearances, which would have saved time and would have reduced the billable hours. Therefore, the Court grants GM's request for a reduction of 21.1 hours for a total of \$10,131.00.

8. Summary of Analysis of Attorneys' Fees

Therefore, the Court AWARDs Plaintiffs the reduced lodestar fee of \$41,051.50.²

² Plaintiffs are not seeking a multiplier.

B. Costs

1. Expenses & Costs

Plaintiffs filed a Cost Memorandum seeking \$2,405.52 in litigation costs and expenses. To challenge the costs and expenses listed therein GM needed to file a motion to strike or tax those costs/expenses per California Rules of Court, rule 3.1700. GM did not do that. Yet Plaintiffs seek affirmative relief under this motion associated with the Cost Memorandum. Because of that, GM's challenges are being considered.

GM does not challenge the cost items for filing and motion fees, or service of process costs. Therefore, the Court awards Plaintiffs these costs and expenses in the amount of \$725.00.

2. Jury fees

Plaintiffs request \$150.00 in jury fees, which consists of their payment of the jury fee deposit. However, this deposit is refundable. If there was sufficient time to notify jurors that the trial would not proceed, the deposited jury fees can be refunded if requested, in writing, within 20 business days from the date the jury is waived or the action is settled, dismissed, or continuance granted. (Code Civ. Proc., § 631.3, subd. (a).) Just because Plaintiffs failed to request a refund of these fees does not mean that GM should have to pay them. Therefore, the Court grants GM's request to tax item 2 in the amount of \$150.00.

3. Deposition Costs

Plaintiffs request deposition costs in the amount of \$385.00, which are generally recoverable pursuant to Code of Civil Procedure section 1033.5, subdivision (a) (3). However, GM served objections to the notice of deposition for Mr. Jensen (GM's expert), which was unilaterally scheduled for November 4, 2025, on October 27, 2025, stating that Mr. Jensen would not be produced on the date scheduled. Plaintiff's counsel's own billing statement does not indicate that counsel even took the time to review GM's objections, much less appear for a

deposition where Mr. Jensen was a no show. Therefore, the Court grants GM's request to tax item 4 in the amount of \$385.00.

4. Court Reporter Fees

Plaintiffs request \$550.00 in court reporter fees but fail to specify what this cost is referring to or provide evidence of this cost. GM seeks to tax these costs. Plaintiffs do not explain this cost. Costs are only allowed if actually incurred; Counsel has not spent anything for future services. Moreover, \$550.00 appears to be an estimate, not an actual charge incurred. Therefore, the Court grants GM's request to tax court reporter costs in the amount of \$550.00.

5. Fees for Electronic Filing or Service

Next Plaintiffs request \$162.52 in fees for electronic filing or service. GM argues that GM should not be billed blindly for costs that include no explanation to prove their legitimacy. Although Code of Civil Procedure section 1033.5, subdivision (a)(14) specifically provides for these fees, a review of Odyssey reflects that Plaintiffs did not pay these fees to the Court and Plaintiffs have not provided any supporting documentation for these fees and expenses. Therefore, the Court grants GM's request to tax electronic filing and service fees in the amount of \$162.52.

6. Other

Finally, Plaintiffs requests \$433.00 in other fees and expenses incurred in this matter. These fees and expenses consist of (1) a fee to Rapid Legal for filing a proof of service in the amount of \$87.55; (2) mileage in the amount of \$166.96 for traveling to and from the courthouse for hearings; and (3) the cost for a rental car in the amount of \$85.62 and gas for the rental car in the amount of \$20.87.³

³ The Court notes that the figures set forth below for costs do not equal \$433.00; they add up to \$361.00. But since the Court is taxing the costs in their entirety, the discrepancy is of no moment.

First, counsel's mileage is covered in Plaintiffs' counsel's hourly attorney's fees and the travel could have been avoided with CourtCall or Zoom. As for the rental car costs and Rapid Legal fees, Plaintiffs provide no documentation to support these fees. Therefore, the Court grants GM's request to tax other costs in the amount of \$433.00.

7. Summary of Costs Analysis

Based upon the forgoing, the Court awards Plaintiffs reasonable costs in the reduced amount of \$725.00.

III. CONCLUSION

The motion is GRANTED IN PART and DENIED IN PART. The Court AWARDS Plaintiffs \$41,051.50 in attorney fees and \$725.00 in costs and expenses for a total of \$41,776.50.

IT IS SO ORDERED.

Dated: _____

[TENTATIVE – NOT FINAL]
Hon. Joseph B. Widman
Judge of the Superior Court